

CRIMINAL SET-ASIDE

(ADULT CASES)



What is a Set-Aside?

A set-aside (also called expungement) means the court seals your criminal or contempt record. Once sealed, it will not show up in official court records. However, they may show up in certain federal background checks, and in rare cases the court can unseal them.

The information below is not legal advice. Please read ORS 137.225 and other relevant Oregon laws for the most recent and accurate information about sealing criminal records. Court staff are not allowed to give you legal advice, so please consult a lawyer if you need advice or legal representation.

The requirements to be eligible can be complicated. The information listed here are just the most basic eligibility requirements. Please be aware that there may be unique requirements and exceptions depending on your individual case.

Who can use this process?

You can ask the court to set aside your record if:

- You were arrested, charged, convicted of a violation or crime, found guilty except for insanity, found in contempt of court, or your case was dismissed or acquitted
- If you were a minor (under 18) at the time of the arrest or citation or were charged as a minor, use the juvenile expunction forms available here:
www.courts.oregon.gov/programs/jcip/ModelCourtForms/Pages/default.aspx

You may qualify for a set aside if you were convicted, and:

- You **finished your sentence**, including probation and paying restitution and fines
- You **haven't been convicted of another crime** during the required waiting period (except traffic violations or a single violation offense)
- You **don't have any open criminal charges or open abuse/person-related contempt proceedings such as violation of a restraining order**
- Your case is **not one of the exceptions listed in ORS 137.225. Convictions for Class A felonies, many sex crimes, several child abuse crimes, and many others are not eligible.** Please read ORS 137.225 for the full list. Other laws may apply to your case.
- Your case was **not for a traffic offense conviction**
- Your case was **not handled in federal, tribal, out-of-state court, or local court**

How long do I have to wait to file for a set aside?

It depends. If you were **convicted** of an offense, use the longest timeline for your situation:

Type of Case	Wait Time (since conviction or release from prison)	If New Offense Committed, the Wait Time Extends by:
Class B Felony	7 years	7 years
Class C Felony; Contempt for abuse/person crime	5 years	5 years
Class A Misdemeanor	3 years	3 years
Class B/C Misdemeanor; Violation; Contempt unrelated to abuse/person crime	1 year	1 year

If you were found **guilty except for insanity (GEI)**, different laws may apply. Refer to ORS 137.223 for the most recent and accurate information regarding GEI.

If your **probation was revoked**, you must wait **3 years** from the revocation date or follow the timelines above—whichever is longer

If you were arrested or cited for an offense but the prosecutor did not proceed to filing a case:

- You can file 60 days after the prosecutor says they won't file charges, or you can file any time after your case was dismissed or you were acquitted

Driving under the influence of intoxicants (DUI) cases are not eligible if charges were dismissed because you completed a diversion program

How do I file?

1. Get fingerprinted and:

- Oregon State Police fingerprinting instructions available here:**
<https://www.oregon.gov/osp/programs/cjis/Pages/Criminal-Justice-Information-Services.aspx>
- Send your fingerprint card to the **Oregon State Police**.
- Pay the **Oregon State Police fee** if you are asking the court to seal a conviction.
- Fill out the **Oregon State Police Request for Set Aside form**.

- **Oregon State Police will send the results to the prosecuting attorney.**
 - 2. Fill out the Oregon Judicial Department's **Motion** to Set Aside and **Declaration** in Support.
 - 3. **Make 2 copies** of the Motion and Declaration:
 - One for your records
 - One to send to the **District Attorney (see step 4)**
 - 4. Mail a copy of motion and declaration to the **Prosecuting Attorney** in the county where charges were or could have been filed, or arrest occurred. Mailing address for Oregon District Attorneys:
<http://www.oregonda.org/copy-of-contact>
 - 5. **Fill out the certificate of mailing** at the bottom of the form
 - 6. **File your forms** in the **circuit court** where the case happened or would have happened. Information about how to file:
<http://www.courts.oregon.gov/courts/Pages/default.aspx>
-

What happens next?

- The District Attorney typically has 120 days to object. If they object, the court will schedule a hearing. You may receive a hearing notice from the court.
- If the court grants your request:
 - Your record is sealed. ORS 137.255(4) states that “upon entry of the order, the conviction, arrest, citation, charge or other proceeding [ordered set aside by the court] shall be deemed not to have occurred, and [you] may answer accordingly any questions relating to its occurrence.”
 - You will receive a copy of the judicial document sealing your case.

Do you need a referral to legal advice or representation?

Contact the Oregon State Bar Lawyer Referral Service: www.oregonstatebar.org

Are you deployed or about to be deployed?

Contact the Oregon State Bar Military Assistance Panel for information about special rights and rules that may apply to you:
<https://www.osbar.org/docs/ris/militaryflier.pdf>

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF Josephine

State of Oregon

Plaintiff

Case No: _____
(leave blank if no court case)

vs

**MOTION TO SET ASIDE AND SEAL
AND
DECLARATION OF ELIGIBILITY**

Maria-Alejandra O'Shaughnessy-Whitfield
Defendant

DOB: 1968-12-31

No Filing Fee

SID# if known: _____

Citing/arresting law enforcement agency: _____
(Example: Salem Police Dept. or Coos County Sheriff)

Arrest Date: _____
(If no arrest date, list date of citation, booking, or incident)

Fingerprint number (FPN #) if known: _____

ELIGIBILITY STATEMENT AND LEGAL BASIS

I am eligible and move for a set aside of my record because the following is true (**check one option only**):

Option 1: ☐ There was a court case, and **I was convicted on at least one charge** (or found guilty except for insanity (GEI) or in contempt of court), and:

☐ I believe all the charges in this case are eligible, and I am moving to set aside all charges, including charges which were dismissed or acquitted

or

☐ Not all the charges on this case are eligible. I am moving to set aside only the following charges:

Name of Charges	Count #

☐ I have additional charges to provide, and they are attached on a separate page

Option 2: ☐ There was a court case, and I am not moving to set aside any convictions. I am moving to set aside all eligible **dismissed or acquitted charges only**.

Option 3: ☒ I was **cited or arrested** and there was **no court case**. I am moving to set aside the citation or arrest records.

Name of Citation/Arrest Offenses
•
•
•

•
•

☐ I have additional offenses to provide, and they are attached on a separate page

DECLARATION OF ELIGIBILITY

These 4 statements must be true to be eligible. Check all that apply:

- ☐ I have waited the required period under law to file this *Motion*
☐ I believe I am legally eligible for a set aside
☐ I have filed fingerprints with the Oregon State Police
☐ I will serve a copy of this *Motion* on the prosecuting attorney

And

*If you selected **Option 1** above, all of the following must also be true. Check all that apply:*

- ☐ I am not currently charged with a crime or contempt of court related to abuse or a person crime
☐ I have paid the Oregon State Police background check fee
☐ I have fully complied and performed all terms of the sentence of the court

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Date	Signature	
<u>maria.alejandra.oshaughnessy@longmailexample.org</u>	<u>Maria-Alejandra O'Shaughnessy-Whitfield</u>	
Email	Name (typed or printed)	
<u>1188 Upper Notch Crossing Road, Apt 14B</u>	<u>Grants Pass, Oregon 97526-2214</u>	
Address	City, State, ZIP	Phone

Certificate of Mailing

I certify that on *(date)*: _____ I placed a true and complete copy of this *Motion* in the United States mail to the prosecuting attorney at *(address)*: _____

Date	Defendant (signature)
	Defendant Name



OREGON STATE POLICE

REQUEST FOR SET ASIDE CRIMINAL RECORD CHECK

(Effective 1/1/2022)

The following information is required to ensure timely completion of your criminal record check request for set aside purposes. Please ensure all information is accurate and the \$33.00 fee is included to avoid delays in processing.

NAME _____
(First) (Middle) (Last)

DATE OF BIRTH _____ PHONE NUMBER _____
MM/DD/YYYY

MAILING ADDRESS _____

OTHER NAMES YOU ARE KNOWN BY (Ex: Maiden Name, Name used at time of arrest):

1. NAME _____
(First) (Middle) (Last)

2. NAME _____
(First) (Middle) (Last)

3. NAME _____
(First) (Middle) (Last)

CIRCUIT OR MUNICIPAL COURT IN WHICH YOU ARE SEEKING A SET ASIDE

(Example: Circuit Court for Wasco County, Municipal Court for City of Springfield)

- | | |
|----------|-----------|
| 1. _____ | 6. _____ |
| 2. _____ | 7. _____ |
| 3. _____ | 8. _____ |
| 4. _____ | 9. _____ |
| 5. _____ | 10. _____ |

Does the motion to set aside include a conviction? YES ☐ NO ☐

THE FOLLOWING MUST BE INCLUDED WITH THIS FORM AND MAILED TO OREGON STATE POLICE:

- ☐ Fingerprint Card Form
- ☐ Fee for set aside of CONVICTION. Include check or money order in the amount of \$33.00, payable to Oregon State Police.

Please note that Oregon law requires the results of the background check be returned to the prosecuting attorney(s) for each county or municipality included within the set aside motion application. This form and the fingerprint card will not be returned to you. OSP will not be contacting you upon completion of the criminal record check.

SET ASIDE CRIMINAL RECORD CHECK SUBMISSIONS TO OSP UNDER ORS 137.225 / ORS 137.223

Effective January 1, 2022 (SB397)

The process to apply for the set aside of a criminal arrest or conviction by a court will change effective January 1, 2022, as a result of Senate Bill 397. The following outlines the steps necessary for submission of fingerprints to Oregon State Police under ORS 137.225 (2)(c) and ORS 137.223(3)(c) as amended by the Oregon Legislature.

1. FINGERPRINTS

- a. Obtain a properly rolled, complete set of your fingerprints using the FBI standard blue applicant fingerprint card (FD-258). An example of this fingerprint card can be viewed at:
<https://www.edo.cjis.gov/artifacts/standard-fingerprint-form-fd-258-1.pdf>
Please contact a local criminal justice agency or public fingerprinting service for information regarding availability and any fee that may apply for these services.
- b. The following are required fields and must be completed on the fingerprint card form in order to avoid rejection of your request.
 - Printed Name of person filing a motion
 - Signature (manual fingerprinting only) of person filing a motion
 - Fingerprinting Official signature and date
 - Date of Birth of person filing a motion
 - Reason Fingerprinted: (must include one of these applicable references)
 - o **APPLICATION FOR SET ASIDE ORS 137.225**
 - o **APPLICATION FOR SET ASIDE ORS 137.223**

2. SET ASIDE FORM/FEE

- a. Complete all information on the [OSP REQUEST FOR SET ASIDE FORM](#).
Please note that Oregon law requires the results of the background check be returned to the prosecuting attorney(s) for each county or municipality included within the set aside motion application.
- b. The fee for an Oregon fingerprint-based Criminal record check for motions to set aside convictions is \$33.00.

3. MAIL THE COMPLETED PACKET TO OSP

- a. The request must include all of the following items:
 - A completed fingerprint card as noted above.
 - Completed OSP Set Aside Request form
 - Check or money order in the amount of \$33.00, payable to Oregon State Police for motions to set aside convictions.
 - Mail the completed packet to:
Oregon State Police, CJIS – Unit 11
ATTN: SET ASIDE
P.O. Box 4395
Portland, OR 97208-4395

FILING INSTRUCTIONS

Movant: Maria-Alejandra O'Shaughnessy-Whitfield

Case No.: none - this route is a citation or arrest with no court case, and the form says to leave the Case No. line blank

County: Josephine

Route: Motion to Set Aside the Record of an Arrest, Citation or Charge Where No Accusatory Instrument Was Filed (ORS 137.225(1)(c))

WHERE THIS GOES

File the Motion and Declaration in the CIRCUIT COURT of the State of Oregon for Josephine County - the county in which you were arrested, cited or charged. The caption on the motion is already filled in with that county.

THE ORDER OF THE STEPS MATTERS

The Oregon Judicial Department's own instruction pages are the first three pages of this packet, and they set the order. In short:

1. Get fingerprinted and send the fingerprint card to the Oregon State Police, using the Oregon State Police request form included in this packet. The Oregon State Police send the results to the prosecuting attorney.
2. Complete the Motion and Declaration. Every item this packet's participant instructions list is yours to fill in.
3. Make two copies: one for your records, one for the District Attorney.
4. Mail a copy to the prosecuting attorney in the county where charges were or could have been filed, or where the arrest happened.
5. Complete the certificate of mailing at the bottom of the motion - at the time you mail it, not before.
6. File your forms in the circuit court.

WHAT THIS PACKET ANSWERED FOR YOU

Page 4 of the motion says to check ONE option only. This packet is built for ORS 137.225(1)(c), so Option 3 is marked and the other two are left unmarked. Read the marked option against your own record before you file; if it is not true of your case, this is the wrong packet.

Option 3 covers a citation or arrest where no accusatory instrument was ever filed. The Case No. line is deliberately blank: the form itself prints "leave blank if no court case" beside it. If a case was in fact filed against you, this is not the packet for it.

WHAT THIS PACKET DID NOT ANSWER

The declaration boxes on page 5 are your sworn statements about your own case, and nothing marks them for you. Read each one and tick the ones that are true.

The last three declaration boxes are printed under "If you selected Option 1 above". This packet is filed on Option 3, so they are left unmarked as a branch this route does not use.

The motion says "No Filing Fee" on its own face. The Oregon State Police background check fee is a different charge and this packet states no amount for it: ask the Oregon State Police.

NO PROPOSED ORDER IS ENCLOSED

This packet contains the Motion, the Declaration of Eligibility, the Certificate of Mailing and the Oregon State Police criminal history request. It contains no proposed order. The court's own packet does not include one and none is drafted here; the order is the court's act, not this packet's.

WHAT THIS PACKET IS NOT

This is a prepared set of official Oregon forms. It is not legal advice, it is not filed for you, and it does not decide whether the court will set aside your record. The instruction pages say the same thing in the court's own words: court staff are not allowed to give legal advice.

Route: obligation:track-only:OR:or_arrest_no_charges